

BEFORE THE FEDERAL MARITIME COMMISSION

CHINA UNITED LINES, LTD,
Complainant,

v.

AMAZON.COM SERVICES LLC,
AMAZON LOGISTICS INC.,
and
BEIJING CENTURY JOYO COURIER SERVICE CO.,
LTD.,
Respondents.

DOCKET NO. 25-04

**RESPONDENTS' OPPOSITION TO COMPLAINANT'S MOTION TO PRODUCE
DOCUMENTS IMPROPERLY WITHHELD AS PRIVILEGED**

Respondents Amazon.com Services LLC (“Amazon”), Amazon Logistics, Inc. (“ALI”), and Beijing Century Joyo Courier Service Co., Ltd. (“BCJ”),¹ oppose Complainant China United Lines, Ltd.’s (“China United”) Motion to Produce Documents Improperly Withheld as Privileged (the “Motion”).

I. INTRODUCTION

The Motion seeks extraordinary relief: an order compelling Amazon to produce documents and communications reflecting Amazon’s legal review of its contractual right to terminate the parties’ service agreement for cause after discovering China United’s breach. China United’s alternative request that the Court conduct an *in camera* review of documents it deems

¹ As noted in prior filings, the Counts of the Amended Complaint that required naming ALI and BCJ as Respondents have now been dismissed, and China United’s corporate witness has confirmed that neither ALI nor BCJ took any action concerning the contract termination that is the basis of China United’s Amended Complaint, leaving Amazon as the only “live” respondent in the proceeding.

“problematic,” without any showing of a compelling need, should likewise be denied as unnecessary.

Amazon’s privilege log is narrowly tailored, consistent with the requirements of the Federal Rules, Your Honor’s Initial Order, and practice before the Federal Maritime Commission. In response to China United’s expansive discovery requests, Amazon produced thousands of pages of responsive, non-privileged documents and communications, demonstrating a substantial and good-faith production. The documents withheld as privileged represent only a small fraction (15%) of the overall production and are limited to materials protected by the attorney-client privilege or work-product doctrine. Amazon’s privilege log appropriately balances China United’s interest in assessing the privilege claims without revealing information that is itself privileged or protected.

China United’s assertion that Amazon is improperly claiming privilege rests entirely on its unsupported, and indeed counter-intuitive, speculation that it is “hard to believe” Amazon’s legal analysis of its termination rights is protected by the attorney-client privilege. As Amazon has repeatedly explained since China United first raised this issue in October 2025, nothing should be surprising about the privileged nature of these materials. From the outset, Amazon’s inquiry into the termination for cause involved legal advice because Amazon uncovered direct evidence of China United’s breach of a provision the contract itself deemed a basis for termination. The matter was, as would be expected, immediately the subject of legal review, and documents and communications concerning that review, including Amazon’s investigation of that breach and its interpretation of its contractual rights and obligations, are indisputably privileged.

China United’s arguments regarding alleged deficiencies in Amazon’s privilege log are also meritless. Amazon’s log fully complies with Your Honor’s Initial Order, Federal Rule of

Civil Procedure 26(b)(5)(A), and the Commission’s rules and practice—and in fact provides more detail than China United’s own privilege log. Likewise, China United’s waiver arguments are unsupported by any facts; China United simply selectively quotes inapposite case law without any explanation as to how Amazon supposedly waived privilege here.

Finally, the timing of the Motion—filed after the close of discovery—together with the absence of good-faith meet-and-confer efforts and the extraordinary relief sought, strongly suggests an improper attempt to prolong discovery and avoid a hearing on the merits. China United lacks any evidence to support its sole remaining fraud claim under section 41102(a) and has resorted to unwarranted motion practice to try to keep its claim afloat. The Motion should be denied.

II. ARGUMENT

A. The Motion Should Be Denied Because Amazon Properly Asserted Privilege

China United provides no sound basis for its extraordinary request that Amazon be compelled to produce privileged documents and communications regarding its legal review of China United’s breach and Amazon’s interpretation of its contractual rights. The Motion repeatedly mischaracterizes Amazon’s position and misstates the legal standard and basic principles of privilege. China United seems to believe that if it can show it really needs to see an attorney-client privileged document it is entitled to do so. That is of course not the law.

The Initial Order in this case incorporates by reference Federal Rule of Civil Procedure 26(b)(5)(A). Under the well-established standard, attorney-client privilege applies where “obtaining or providing legal advice [is] a primary purpose of the communication, meaning one of the significant purposes of the communication.” *See TPG Pressure, Inc., v. Omni Logistics LLC and Epic Freight Solutions LLC*, FMC Docket No. 22-31, 2023 WL 7328882 at *3 (ALJ Nov. 3, 2023) (citing *In re Kellogg Brown & Root, Inc.*, 756 F.3d 754, 759 (D.C. Cir. 2014)). The rule

does not require that seeking legal advice be the only purpose of the communication, though as to many of the documents China United seeks that was in fact the case. Amazon's privilege logs accurately describe documents withheld or redacted for privilege in accordance with this standard.

The Motion repeatedly mischaracterizes Amazon's position. It asserts that Amazon claims privilege over "documents and information evidencing Amazon's search for and discovery of any alleged breach." Motion at 4. That is false. Amazon has produced documents evidencing its April 18, 2023, discovery of China United's material breach—documents China United has possessed for months and examined extensively in depositions. Amazon has withheld documents reflecting the legal review undertaken at counsel's direction after the breach was discovered, including documents and communications analyzing Amazon's contractual rights and obligations.

The Motion likewise falsely asserts that Amazon is withholding communications merely because "a company lawyer is copied." Motion at 5. Amazon has done no such thing. The descriptions in Amazon's privilege log demonstrate that the withheld documents were created with a significant purpose of obtaining or providing legal advice. *See FTC v. Boehringer Ingelheim Pharms., Inc.*, 180 F. Supp. 3d 1, 16 (D.D.C. 2016), *aff'd*, 892 F.3d 1264 (D.C. Cir. 2018) ("[C]ourts in this Circuit apply the 'primary purpose test,' which asks whether 'one of the significant purposes' of the communication was to obtain or give legal advice"). That is true whether the lawyer who received it was listed on the top line or a lower line of the communication.

China United's arguments that the form of Amazon's privilege log is deficient are also meritless. Amazon provided a detailed log that exceeds the information provided in China United's own logs, including identifying document authors and blind-copied recipients. China United complains that Amazon did not include titles or roles for non-attorney participants, Motion at 5, while failing to note that China United ignored Amazon's offer to provide such information months

ago, if China United did the same. *See* Cullinane Decl., Ex. D at 2. China United chose instead to wait many months, and then to file this Motion asking that Amazon be ordered to comply with a standard that is not required by the Federal Rules or the Initial Order, and with which China United itself has refused to comply.

The Motion’s assertion that Amazon relies on vague privilege descriptions is also entirely unfounded. Amazon’s log identifies documents “seeking, transmitting, or reflecting legal advice” and specifies protected subject matter, which courts recognize as sufficient. *See, e.g., SEC v. Beacon Hill Asset Mgmt. LLC*, 231 F.R.D. 134, 144-145 (S.D.N.Y. 2024) (finding descriptions on privilege log of documents “identified as correspondence or e-mails seeking, transmitting, or reflecting legal advice” “to be sufficient” and that requiring disclosure of further information would come “perilously close” to disclosure of the substance of privileged information). Again, China United uses the same “reflecting legal advice” description in its own privilege logs, but seeks to impose on Amazon a standard it is unwilling to comply with itself.

China United’s waiver arguments are frivolous. The Motion cites no evidence that Amazon disclosed privileged materials to third parties or to employees outside the legal review directed by counsel. China United likewise cites no evidence that any privileged communications were disseminated beyond those involved in analyzing Amazon’s contractual rights following China United’s breach. The case law China United cites finding waiver where such disclosures have occurred is thus entirely irrelevant to the facts of *this* case.

Finally, the Motion mischaracterizes deposition testimony by conflating Amazon’s legal review with the subsequent decision to act on counsel’s advice. China United’s claim that Amazon must be improperly asserting privilege because it produced fewer documents relating to the termination for cause than relating to its notice to terminate for convenience is nonsensical. China

United cannot argue that Amazon improperly withheld documents related to the termination for cause by logging them. Rather, its argument boils down to a demand that more documents should exist. This is not a valid basis to challenge the log. As China United is aware from the document discovery and deposition testimony in this case, there is a reason there are fewer documents related to the termination for cause than there were for the decision to issue the notice to terminate for convenience, namely the termination for cause did not trigger an internal Spending and Transaction Policy approval workflow. Business decisions with significant costs require internal approval to proceed from both business and finance leadership. *See, e.g., Scanlon Decl., Ex. A, Cardadeiro Dep. 97–98* (“at that point in time, it’s just a change of a decision that’s already been made, which is to move forward the termination of a vendor. It did not present any new... cost potential to the organization. So...there’s not some potential for cost incurrence... probably not going through that [approval]”); *Ex. B, Baker Dep. at 43* (“There’s a transaction policy associated with all these...approval limits on when a financial penalty can be taken. If it’s terminated with cause and there’s no financial penalty, I might not have been aware of it [termination for cause of a carrier] at all.”).

Because the termination for cause did not trigger such a business review, fewer documents were created at the time, and there are no further documents to produce (or log) on this issue. The termination for cause also raised the legal question of whether the uncontested fact that China United used Amazon’s name without its permission warranted such termination, so as noted above it is not surprising that it involved a number of privileged communications.

For all of these reasons, the Motion is without merit and should be denied.

B. Alternatively, The Motion Should Be Denied as Untimely and Improper

The Motion is untimely and improper. It was filed after the close of discovery and in violation of China United’s obligation to meet and confer under the Commission’s Rules. *See* 46 C.F.R. § 502.71 (requiring a good-faith meet-and-confer before filing a non-dispositive motion). Although the Motion concedes that privilege issues have been discussed since October 2025, it offers no explanation for why China United waited nearly five months—and until after discovery closed under Your Honor’s Third Revised Scheduling Order—to file this Motion. That dilatory conduct alone warrants denial. *See SeaFair USA LLC v. Sterling Container Line Ltd. and Atlantic Forwarding Ltd.*, FMC Docket No. 22-34 (ALJ June 26, 2023) (dismissing Motion to Compel and finding that “[g]iven that the discovery period is now closed, any additional issues regarding discovery may only be raised in the parties’ briefs”); *YSN Imports v. Oberlander*, FMC Docket No. 21-02, 2022 WL 247912, at *2 (ALJ Jan. 21, 2022) (denying Motion to Compel and finding Complainant’s “delay in filing the motion to compel suggests that these document were not a priority” given Complainant had several months to obtain the information).

China United also failed to meaningfully meet and confer before filing this discovery motion, which is its fifth such motion. The Motion’s description of the January 8, 2026 meet and confer session between the parties is materially incomplete. At that meeting, which consisted in large part of China United’s Shanghai counsel reading from a prepared statement as to its view of the merits of the case, the parties agreed that Amazon would provide a preliminary written response to the issues raised, and that China United would follow up with a detailed, itemized list of privilege-log entries it believed warranted further review. *See* Scanlon Decl., ¶¶ 7-8. Amazon kept its end of the bargain with a January 17, 2026 response that addressed China United’s concerns in detail and expressly invited China United to identify objections to specific

privilege-log entries; yet the Motion entirely fails to acknowledge this fact or to provide a copy of that response. Amazon does so here. Scanlon Decl. Ex. C, Amazon’s January 17 Email at 2.² China United, by contrast, never followed through with its own commitment to provide a specific list of entries that it believed warranted further review. Instead, it waited nearly a month—until after discovery had closed—and filed this Motion. Even now, China United fails to identify the specific log entries it challenges, instead broadly highlighting large groups of entries in an exhibit to its filings without explanations as to why it believes each entry is inappropriate. *See* Cullinane Decl., Ex. H.

Having failed to act diligently or to comply with its meet-and-confer obligations, China United cannot now seek extraordinary relief. The Motion can and should be denied on this ground alone, with prejudice.

C. The Alternative Request for *In Camera* Review Should Likewise be Denied

Commission precedent generally limits *in camera* review to cases involving a “compelling national or governmental interest.” *Possible Unfiled Agreement Among A.P. Moller-Maersk Line, P&O Nedlloyd Limited and Sea-Land Service, Inc.*, FMC Docket No. 97-08, 1998 WL 940873, at *1 (ALJ Aug. 3, 1998). China United has made no attempt to identify—let alone substantiate—any such interest here. Instead, it vaguely references “problematic illustrative entries” without explanation or analysis. That is plainly insufficient to warrant *in camera* review, and the request should be denied.

² The Motion also makes no reference to Amazon’s November 10, 2025 point-by-point response to China United’s October 16, 2025 letter included with the Motion. The omission is also corrected here. Scanlon Decl., Ex. D, Amazon’s Letter Re: Document Production.

III. CONCLUSION

Amazon appropriately withheld privileged documents and communications in accordance with the applicable legal standard, and its privilege log fully complies with the Initial Order, the Federal Rules, and Federal Maritime Commission rules and practices. The Motion should be denied as untimely, unsupported, and without merit.

Respectfully submitted,

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February 23, 2026

CERTIFICATE OF SERVICE

I certify that on this 23rd day of February, 2026, the aforesaid Opposition to Complainant's Motion to Produce Documents Improperly Withheld as Privileged has been filed with the Secretary for the public docket, with a copy to judges@fmc.gov and served on the following counsel of record, as provided by the Initial Order in this proceeding.

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